



# Previous employer safety performance + D&A inquiry

Acme Trucking LLC · for **John Doe**

§391.23(d) requires us to investigate a driver's safety performance history with each DOT-regulated employer from the past 3 years. §40.25 requires the same for DOT D&A testing history. This form combines both inquiries.

## I · TO THE PREVIOUS EMPLOYER

Dear Westbound Transport Inc,

The above-named driver has applied for employment with **Acme Trucking LLC**. The driver has signed a written authorization (attached) consenting to the release of their safety performance and DOT drug + alcohol testing history. We are requesting this information pursuant to 49 CFR §391.23(d) and §40.25.

You are required by federal law to respond to this inquiry within 30 days. Please complete Sections II and III below and return to the address on file. Indicate "N/A" or "None" where applicable.

## II · DOT SAFETY PERFORMANCE HISTORY (§391.23(D))

| QUESTION                                                                            | RESPONSE                                                 |
|-------------------------------------------------------------------------------------|----------------------------------------------------------|
| Was the driver employed by your company in a DOT safety-sensitive function?         | <input type="checkbox"/> Yes <input type="checkbox"/> No |
| Dates of employment (from / to)                                                     | _____                                                    |
| Reason for leaving (voluntary / discharge / layoff / other)                         | _____                                                    |
| Did the driver have any accidents recorded in our §390.15 Accident Register?        | <input type="checkbox"/> Yes <input type="checkbox"/> No |
| If yes, please list date, location, severity                                        | _____                                                    |
| Did the driver have any FMCSA-recordable accidents in the 3 years prior to leaving? | <input type="checkbox"/> Yes <input type="checkbox"/> No |



### III · DOT DRUG + ALCOHOL TESTING HISTORY (§40.25)

| QUESTION                                                                                               | RESPONSE                                                 |
|--------------------------------------------------------------------------------------------------------|----------------------------------------------------------|
| Was the driver subject to your DOT drug + alcohol testing program?                                     | <input type="checkbox"/> Yes <input type="checkbox"/> No |
| Did the driver have a verified positive DOT drug test in the past 3 years?                             | <input type="checkbox"/> Yes <input type="checkbox"/> No |
| Did the driver have an alcohol confirmation test $\geq 0.04$ BAC in the past 3 years?                  | <input type="checkbox"/> Yes <input type="checkbox"/> No |
| Did the driver refuse to be tested in the past 3 years?                                                | <input type="checkbox"/> Yes <input type="checkbox"/> No |
| Did the driver have an "actual knowledge" violation (per §382.107) in the past 3 years?                | <input type="checkbox"/> Yes <input type="checkbox"/> No |
| If any of the above is "Yes", did the driver complete the return-to-duty process with a qualified SAP? | <input type="checkbox"/> Yes <input type="checkbox"/> No |
| If RTD was completed · was the driver compliant with the follow-up testing plan as of separation?      | <input type="checkbox"/> Yes <input type="checkbox"/> No |

### IV · CERTIFICATION

I certify that the information provided above is, to the best of my knowledge, accurate and complete. I am authorized to release this information on behalf of the named employer.

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AUTHORIZED SIGNATURE

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DATE

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PRINTED NAME + TITLE

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PHONE

Federal law (§40.25 + §391.23) requires response within 30 days of receipt. Failure to respond is itself a federal violation for the prior employer.